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Title 29 — Labor

Subtitle B — Regulations Relating to Labor

Chapter XVII — Occupational Safety and Health Administration, Department of Labor

Part 1952 Approved State Plans for Enforcement of State Standards

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PART 1952—APPROVED STATE PLANS FOR ENFORCEMENT OF STATE STANDARDS

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Subpart A—List of Approved State Plans for Private-Sector and State and Local Government Employees

§ 1952.1 South Carolina.

- (a) The South Carolina State plan received initial approval on December 6, 1972.
- (b) The South Carolina State plan received final approval on December 18, 1987.
- (c) Under the terms of the 1978 Court Order in *AFL-CIO v. Marshall*, compliance officer staffing levels (benchmarks) necessary for a “fully effective” enforcement program were required to be established for each State operating an approved State plan. In September 1984, South Carolina, in conjunction with OSHA, completed a reassessment of the staffing levels initially established in 1980 and proposed revised compliance staffing benchmarks of 17 safety and 12 health compliance officers. After opportunity for public comment and service on the AFL-CIO, the Assistant Secretary approved these revised staffing requirements on January 17, 1986.
- (d) The plan covers all private-sector employers and employees, with several notable exceptions, as well as State and local government employers and employees, within the State. For current information on these exceptions and for additional details about the plan, please visit http://www.osha.gov/dcsp/osp/stateprogs/south_carolina.html.

§ 1952.2 Oregon.

- (a) The Oregon State plan received initial approval on December 28, 1972.
- (b) The Oregon State plan received final approval on May 12, 2005.
- (c) Under the terms of the 1978 Court Order in *AFL-CIO v. Marshall*, compliance staffing levels (“benchmarks”) necessary for a “fully effective” enforcement program were required for each State operating an approved State plan. In October 1992, Oregon completed, in conjunction with OSHA, a reassessment of the health staffing level initially established in 1980 and proposed a revised health benchmark of 28 health compliance officers. Oregon elected to retain the safety benchmark level established in the 1980 Report to the Court of the U.S. District Court for the District of Columbia in 1980 of 47 safety compliance officers. After opportunity for public comment and service on the AFL-CIO, the Assistant Secretary approved these revised staffing requirements on August 11, 1994.

- (d) The plan covers all private-sector employers and employees, with several notable exceptions, as well as State and local government employers and employees, within the State. For current information on these exceptions and for additional details about the plan, please visit <http://www.osha.gov/dcsp/osp/stateprogs/oregon.html>.

§ 1952.3 Utah.

- (a) The Utah State plan received initial approval on January 10, 1973.
- (b) The Utah State plan received final approval on July 16, 1985.
- (c) Under the terms of the 1978 Court Order in *AFL-CIO v. Marshall*, compliance staffing levels (benchmarks) necessary for a “fully effective” enforcement program were required to be established for each State operating an approved State plan. In September 1984, Utah, in conjunction with OSHA, completed a reassessment of the levels initially established in 1980 and proposed revised compliance staffing benchmarks of 10 safety and 9 health compliance officers. After opportunity for public comments and service on the AFL-CIO, the Assistant Secretary approved these revised staffing requirements effective July 16, 1985.
- (d) The plan covers all private-sector employers and employees, with several notable exceptions, as well as State and local government employers and employees, within the State. For current information on these exceptions and for additional details about the plan, please visit <http://www.osha.gov/dcsp/osp/stateprogs/utah.html>.

§ 1952.4 Washington.

- (a) The Washington State plan received initial approval on January 26, 1973.
- (b) OSHA entered into an operational status agreement with Washington.
- (c) The plan covers all private-sector employers and employees, with several notable exceptions, as well as State and local government employers and employees, within the State. For current information on these exceptions and for additional details about the plan, please visit <http://www.osha.gov/dcsp/osp/stateprogs/washington.html>.

§ 1952.5 North Carolina.

- (a) The North Carolina State plan received initial approval on February 1, 1973.
- (b) The North Carolina State plan received final approval on December 18, 1996.
- (c) Under the terms of the 1978 Court Order in *AFL-CIO v. Marshall*, compliance staffing levels (“benchmarks”) necessary for a “fully effective” enforcement program were required for each State operating an approved State plan. In September 1984, North Carolina, in conjunction with OSHA, completed a reassessment of the levels initially established in 1980 and proposed revised benchmarks of 50 safety and 27 health compliance officers. After opportunity for public comment and service on the AFL-CIO, the Assistant Secretary approved these revised staffing requirements on January 17, 1986.

In June 1990, North Carolina reconsidered the information utilized in the initial revision of its 1980 benchmarks and determined that changes in local conditions and improved inspection data warranted further revision of its benchmarks to 64 safety inspectors and 50 industrial hygienists. After opportunity for public comment and service on the AFL-CIO, the Assistant Secretary approved these revised staffing requirements on June 4, 1996.

- (d) The plan covers all private-sector employers and employees, with several notable exceptions, as well as State and local government employers and employees, within the State. For current information on these exceptions and for additional details about the plan, please visit http://www.osha.gov/dcsp/osp/stateprogs/north_carolina.html.

§ 1952.6 Iowa.

- (a) The Iowa State plan received initial approval on July 20, 1973.
- (b) The Iowa State plan received final approval on July 2, 1985.
- (c) Under the terms of the 1978 Court Order in *AFL-CIO v. Marshall*, compliance staffing levels (benchmarks) necessary for a “fully effective” enforcement program were required to be established for each State operating an approved State plan. In September 1984, Iowa, in conjunction with OSHA, completed a reassessment of the levels initially established in 1980 and proposed revised compliance staffing benchmarks of 16 safety and 13 health compliance officers. After opportunity for public comment and service on the AFL-CIO, the Assistant Secretary approved these revised staffing requirements effective July 2, 1985.
- (d) The plan covers all private-sector employers and employees, with several notable exceptions, as well as State and local government employers and employees, within the State. For current information on these exceptions and for additional details about the plan, please visit <http://www.osha.gov/dcsp/osp/stateprogs/iowa.html>.

§ 1952.7 California.

- (a) The California State plan received initial approval on May 1, 1973.
- (b) OSHA entered into an operational status agreement with California.
- (c) The plan covers all private-sector employers and employees, with several notable exceptions, as well as State and local government employers and employees, within the State. For current information on these exceptions and for additional details about the plan, please visit <http://www.osha.gov/dcsp/osp/stateprogs/california.html>.

§ 1952.8 Minnesota.

- (a) The Minnesota State plan received initial approval on June 8, 1973.
- (b) The Minnesota State plan received final approval on July 30, 1985.
- (c) Under the terms of the 1978 Court Order in *AFL-CIO v. Marshall*, compliance staffing levels (benchmarks) necessary for a “fully effective” enforcement program were required to be established for each State operating an approved State plan. In September 1984 Minnesota, in conjunction with OSHA, completed a reassessment of the levels initially established in 1980 and proposed revised compliance staffing benchmarks of 31 safety and 12 health compliance officers. After opportunity for public comment and service on the AFL-CIO, the Assistant Secretary approved these revised staffing requirements on July 30, 1985.
- (d) The plan covers all private-sector employers and employees, with several notable exceptions, as well as State and local government employers and employees, within the State. For current information on these exceptions and for additional details about the plan, please visit <http://www.osha.gov/dcsp/osp/stateprogs/minnesota.html>.

§ 1952.9 Maryland.

- (a) The Maryland State plan received initial approval on July 5, 1973.
- (b) The Maryland State plan received final approval on July 18, 1985.
- (c) Under the terms of the 1978 Court Order in *AFL-CIO v. Marshall*, compliance staffing levels (benchmarks) necessary for a “fully effective” enforcement program were required to be established for each State operating an approved State plan. In September 1984 Maryland, in conjunction with OSHA, completed a reassessment of the levels initially established in 1980 and proposed revised compliance staffing benchmarks of 36 safety and 18 health compliance officers. After opportunity for public comment and service on the AFL-CIO, the Assistant Secretary approved these revised staffing requirements on July 18, 1985.
- (d) The plan covers all private-sector employers and employees, with several notable exceptions, as well as State and local government employers and employees, within the State. For current information on these exceptions and for additional details about the plan, please visit <http://www.osha.gov/dcsp/osp/stateprogs/maryland.html>.

§ 1952.10 Tennessee.

- (a) The Tennessee State plan received initial approval on July 5, 1973.
- (b) The Tennessee State plan received final approval on July 22, 1985.
- (c) Under the terms of the 1978 Court Order in *AFL-CIO v. Marshall*, compliance staffing levels (benchmarks) necessary for a “fully effective” enforcement program were required to be established for each State operating an approved State plan. In September 1984 Tennessee, in conjunction with OSHA, completed a reassessment of the levels initially established in 1980 and proposed revised compliance staffing benchmarks of 22 safety and 14 health compliance officers. After opportunity for public comment and service on the AFL-CIO, the Assistant Secretary approved these revised staffing requirements on July 22, 1985.
- (d) The plan covers all private-sector employers and employees, with several notable exceptions, as well as State and local government employers and employees, within the State. For current information on these exceptions and for additional details about the plan, please visit <http://www.osha.gov/dcsp/osp/stateprogs/tennessee.html>.

§ 1952.11 Kentucky.

- (a) The Kentucky State plan received initial approval on July 31, 1973.
- (b) The Kentucky State plan received final approval on June 13, 1985.
- (c) Under the terms of the 1978 Court Order in *AFL-CIO v. Marshall*, compliance staffing levels (benchmarks) necessary for a “fully effective” enforcement program were required to be established for each State operating an approved State plan. In September 1984 Kentucky, in conjunction with OSHA, completed a reassessment of the levels initially established in 1980 and proposed revised compliance staffing benchmarks of 23 safety and 14 health compliance officers. After opportunity for public comment and service on the AFL-CIO, the Assistant Secretary approved these revised staffing requirements on June 13, 1985.

- (d) The plan covers all private-sector employers and employees, with several notable exceptions, as well as State and local government employers and employees, within the State. For current information on these exceptions and for additional details about the plan, please visit <http://www.osha.gov/dcsp/osp/stateprogs/kentucky.html>.

§ 1952.12 Alaska.

- (a) The Alaska State plan received initial approval on August 10, 1973.
- (b) The Alaska State plan received final approval on September 28, 1984.
- (c) Under the terms of the 1978 Court Order in *AFL-CIO v. Marshall*, compliance staffing levels (benchmarks) necessary for a “fully effective” enforcement program were required to be established for each State operating an approved State plan. Alaska’s compliance staffing benchmarks are 4 safety and 5 health compliance officers.
- (d) The plan covers all private-sector employers and employees, with several notable exceptions, as well as State and local government employers and employees, within the State. For current information on these exceptions and for additional details about the plan, please visit <http://www.osha.gov/dcsp/osp/stateprogs/alaska.html>.

§ 1952.13 Michigan.

- (a) The Michigan State plan received initial approval on October 3, 1973.
- (b) OSHA entered into an operational status agreement with Michigan.
- (c) Under the terms of the 1978 Court Order in *AFL-CIO v. Marshall*, compliance staffing levels (“benchmarks”) necessary for a “fully effective” enforcement program were required for each State operating an approved State plan. In 1992, Michigan completed, in conjunction with OSHA, a reassessment of the levels initially established in 1980 and proposed revised benchmarks of 56 safety and 45 health compliance officers. After opportunity for public comment and service on the AFL-CIO, the Assistant Secretary approved these revised staffing requirements on April 20, 1995.
- (d) The plan covers all private-sector employers and employees, with several notable exceptions, as well as State and local government employers and employees, within the State. For current information on these exceptions and for additional details about the plan, please visit <https://www.osha.gov/dcsp/osp/stateprogs/michigan.html>.

§ 1952.14 Vermont.

- (a) The Vermont State plan received initial approval on October 16, 1973.
- (b) OSHA entered into an operational status agreement with Vermont.
- (c) The plan covers all private-sector employers and employees, with several notable exceptions, as well as State and local government employers and employees, within the State. For current information on these exceptions and for additional details about the plan, please visit <http://www.osha.gov/dcsp/osp/stateprogs/vermont.html>.

§ 1952.15 Nevada.

- (a) The Nevada State plan received initial approval on January 4, 1974.
- (b) The Nevada State plan received final approval on April 18, 2000.

- (c) Under the terms of the 1978 Court Order in *AFL-CIO v. Marshall*, compliance staffing levels (benchmarks) necessary for a “fully effective” enforcement program were required to be established for each State operating an approved State plan. In July 1986 Nevada, in conjunction with OSHA, completed a reassessment of the levels initially established in 1980 and proposed revised compliance staffing benchmarks of 11 safety and 5 health compliance officers. After opportunity for public comment and service on the AFL-CIO, the Assistant Secretary approved these revised staffing requirements on September 2, 1987.
- (d) The plan covers all private-sector employers and employees, with several notable exceptions, as well as State and local government employers and employees, within the State. For current information on these exceptions and for additional details about the plan, please visit <http://www.osha.gov/dcsp/osp/stateprogs/nevada.html>.

§ 1952.16 Hawaii.

- (a) The Hawaii State plan received initial approval on January 4, 1974.
- (b) The Hawaii State plan received final approval on May 4, 1984.
- (c) On September 21, 2012 OSHA modified the State Plan's approval status from final approval to initial approval, and reinstated concurrent federal enforcement authority pending the necessary corrective action by the State Plan in order to once again meet the criteria for a final approval determination. OSHA and Hawaii entered into an operational status agreement to provide a workable division of enforcement responsibilities.
- (d) The plan covers all private-sector employers and employees, with several notable exceptions, as well as State and local government employers and employees, within the State. For current information on these exceptions and for additional details about the plan, please visit <http://www.osha.gov/dcsp/osp/stateprogs/hawaii.html>.

§ 1952.17 Indiana.

- (a) The Indiana State plan received initial approval on March 6, 1974.
- (b) The Indiana State plan received final approval on September 26, 1986.
- (c) Under the terms of the 1978 Court Order in *AFL-CIO v. Marshall*, compliance staffing levels (benchmarks) necessary for a “fully effective” enforcement program were required to be established for each State operating an approved State plan. In September 1984 Indiana, in conjunction with OSHA, completed a reassessment of the levels initially established in 1980 and proposed revised compliance staffing benchmarks of 47 safety and 23 health compliance officers. After opportunity for public comment and service on the AFL-CIO, the Assistant Secretary approved these revised staffing requirements on January 17, 1986.
- (d) The plan covers all private-sector employers and employees, with several notable exceptions, as well as State and local government employers and employees, within the State. For current information on these exceptions and for additional details about the plan, please visit <http://www.osha.gov/dcsp/osp/stateprogs/indiana.html>.

§ 1952.18 Wyoming.

- (a) The Wyoming State plan received initial approval on May 3, 1974.
- (b) The Wyoming State plan received final approval on June 27, 1985.

- (c) Under the terms of the 1978 Court Order in *AFL-CIO v. Marshall*, compliance staffing levels (benchmarks) necessary for a “fully effective” enforcement program were required to be established for each State operating an approved State plan. In September 1984 Wyoming, in conjunction with OSHA, completed a reassessment of the levels initially established in 1980 and proposed revised compliance staffing benchmarks of 6 safety and 2 health compliance officers. After opportunity for public comment and service on the AFL-CIO, the Assistant Secretary approved these revised staffing requirements on June 27, 1985.
- (d) The plan covers all private-sector employers and employees, with several notable exceptions, as well as State and local government employers and employees, within the State. For current information on these exceptions and for additional details about the plan, please visit <http://www.osha.gov/dcsp/osp/stateprogs/wyoming.html>.

§ 1952.19 Arizona.

- (a) The Arizona State plan received initial approval on November 5, 1974.
- (b) The Arizona State plan received final approval on June 20, 1985.
- (c) Under the terms of the 1978 Court Order in *AFL-CIO v. Marshall*, compliance staffing levels (benchmarks) necessary for a “fully effective” enforcement program were required to be established for each State operating an approved State plan. In September 1984, Arizona in conjunction with OSHA, completed a reassessment of the levels initially established in 1980 and proposed revised compliance staffing benchmarks of 9 safety and 6 health compliance officers. After opportunity for public comment and service on the AFL-CIO, the Assistant Secretary approved these revised staffing requirements on June 20, 1985.
- (d) The plan covers all private-sector employers and employees, with several notable exceptions, as well as State and local government employers and employees, within the State. For current information on these exceptions and for additional details about the plan, please visit <http://www.osha.gov/dcsp/osp/stateprogs/arizona.html>.

§ 1952.20 New Mexico.

- (a) The New Mexico State plan received initial approval on December 10, 1975.
- (b) OSHA entered into an operational status agreement with New Mexico.
- (c) Under the terms of the 1978 Court Order in *AFL-CIO v. Marshall*, compliance staffing levels (“benchmarks”) necessary for a “fully effective” enforcement program were required for each State operating an approved State plan. In May 1992, New Mexico completed, in conjunction with OSHA, a reassessment of the staffing levels initially established in 1980 and proposed revised benchmarks of 7 safety and 3 health compliance officers. After opportunity for public comment and service on the AFL-CIO, the Assistant Secretary approved these revised staffing requirements on August 11, 1994.
- (d) The plan covers all private-sector employers and employees, with several notable exceptions, as well as State and local government employers and employees, within the State. For current information on these exceptions and for additional details about the plan, please visit http://www.osha.gov/dcsp/osp/stateprogs/new_mexico.html.

§ 1952.21 Virginia.

- (a) The Virginia State plan received initial approval on September 28, 1976.

- (b) The Virginia State plan received final approval on November 30, 1988.
- (c) Under the terms of the 1978 Court Order in *AFL-CIO v. Marshall*, compliance staffing levels (benchmarks) necessary for a “fully effective” enforcement program were required to be established for each State operating an approved State plan. In September 1984 Virginia, in conjunction with OSHA, completed a reassessment of the levels initially established in 1980 and proposed revised compliance staffing benchmarks of 38 safety and 21 health compliance officers. After opportunity for public comment and service on the AFL-CIO, the Assistant Secretary approved these revised staffing requirements on January 17, 1986.
- (d) The plan covers all private-sector employers and employees, with several notable exceptions, as well as State and local government employers and employees, within the State. For current information on these exceptions and for additional details about the plan, please visit <http://www.osha.gov/dcsp/osp/stateprogs/virginia.html>.

§ 1952.22 Puerto Rico.

- (a) The Puerto Rico State plan received initial approval on August 30, 1977.
- (b) OSHA entered into an operational status agreement with Puerto Rico.
- (c) The plan covers all private-sector employers and employees, with several notable exceptions, as well as State and local government employers and employees, within the State. For current information on these exceptions and for additional details about the plan, please visit http://www.osha.gov/dcsp/osp/stateprogs/puerto_rico.html.

Subpart B—List of Approved State Plans for State and Local Government Employees

§ 1952.23 Connecticut.

- (a) The Connecticut State plan for State and local government employees received initial approval from the Assistant Secretary on November 3, 1978.
- (b) In accordance with 29 CFR 1956.10(g), a State is required to have a sufficient number of adequately trained and competent personnel to discharge its responsibilities under the plan. The Connecticut Public Employee Only State plan provides for three (3) safety compliance officers and one (1) health compliance officer as set forth in the Connecticut Fiscal Year 1986 grant. This staffing level meets the “fully effective” benchmarks established for Connecticut for both safety and health.
- (c) The plan only covers State and local government employers and employees within the State. For additional details about the plan, please visit <http://www.osha.gov/dcsp/osp/stateprogs/connecticut.html>.

§ 1952.24 New York.

- (a) The New York State plan for State and local government employees received initial approval from the Assistant Secretary on June 1, 1984.
- (b) The plan, as revised on April 28, 2006, provides assurances of a fully trained, adequate staff, including 29 safety and 21 health compliance officers for enforcement inspections and 11 safety and 9 health consultants to perform consultation services in the public sector. The State has also given satisfactory assurances of continued adequate funding to support the plan.
- (c) The plan only covers State and local government employers and employees within the State. For additional details about the plan, please visit http://www.osha.gov/dcsp/osp/stateprogs/new_york.html.

§ 1952.25 New Jersey.

- (a) The New Jersey State plan for State and local government employees received initial approval from the Assistant Secretary on January 11, 2001.
- (b) The plan further provides assurances of a fully trained, adequate staff, including 20 safety and 7 health compliance officers for enforcement inspections, and 4 safety and 3 health consultants to perform consultation services in the public sector, and 2 safety and 3 health training and education staff. The State has assured that it will continue to provide a sufficient number of adequately trained and qualified personnel necessary for the enforcement of standards as required by 29 CFR 1956.10. The State has also given satisfactory assurance of adequate funding to support the plan.
- (c) The plan only covers State and local government employers and employees within the State. For additional details about the plan, please visit http://www.osha.gov/dcsp/osp/stateprogs/new_jersey.html.

§ 1952.26 The Virgin Islands.

- (a) The Virgin Islands State plan for Public Employees Only was approved on July 23, 2003.
- (b) The plan only covers State and local government employers and employees within the State. For additional details about the plan, please visit http://www.osha.gov/dcsp/osp/stateprogs/virgin_islands.html.

§ 1952.27 Illinois.

- (a) The Illinois State plan for state and local government employees received initial approval from the Assistant Secretary on September 1, 2009.
- (b) The Plan further provides assurances of a fully trained, adequate staff within three years of plan approval, including 11 safety and 3 health compliance officers for enforcement inspections, and 3 safety and 2 health consultants to perform consultation services in the public sector. The state has assured that it will continue to provide a sufficient number of adequately trained and qualified personnel necessary for the enforcement of standards as required by 29 CFR 1956.10. The state has also given satisfactory assurance of adequate funding to support the Plan.
- (c) The plan only covers State and local government employers and employees within the state. For additional details about the plan, please visit <http://www.osha.gov/dcsp/osp/stateprogs/illinois.html>.

§ 1952.28 Maine.

- (a) The Maine State Plan for State and local government employees received initial approval from the Assistant Secretary on August 5, 2015.
- (b) The Plan further provides assurances of a fully trained, adequate staff within three years of plan approval, including 2 safety and 1 health compliance officers for enforcement inspections, and 3 safety and 1 health consultants to perform consultation services in the public sector. The State has assured that it will continue to provide a sufficient number of adequately trained and qualified personnel necessary for the enforcement of standards as required by 29 CFR 1956.10. The State has also given satisfactory assurance of adequate funding to support the Plan.
- (c) The plan only covers State and local government employers and employees within the State. For additional details about the plan, please visit <https://www.osha.gov/dcsp/osp/stateprogs/maine.html>.

[81 FR 6178, Feb. 5, 2016]

§ 1952.29 Massachusetts.

- (a) The Massachusetts State Plan for State and local Government employees received initial approval from the Assistant Secretary on August 18, 2022.
- (b) The Plan further provides assurances of a fully trained, adequate staff within three years of plan approval, including 8 safety and 3 health compliance officers for enforcement inspections, and 2 safety and 1 health consultants to perform consultation services in the public sector. The State has assured that it will continue to provide a sufficient number of adequately trained and qualified personnel necessary for the enforcement of standards as required by 29 CFR 1956.10. The State has also given satisfactory assurance of adequate funding to support the Plan.
- (c) The plan only covers State and local government employers and employees within the State. For additional details about the plan, please visit <https://www.osha.gov/dcsp/osp/stateprogs/massachusetts.html>.

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